

BACKGROUND AND SUMMARY OF PLEADINGS

Plaintiff's Motion

Plaintiff Malin Kumar Ram is applying for 1) and Order Appointing Receiver; 2) a Temporary Restraining Order; and 3) and OSC re Confirmation of the Appointment of a Receiver and Preliminary Injunction.

Plaintiff wishes a receiver appointed to “manage, oversee and possibly sell” three properties owned by Plaintiff. (Motion, p. 4:3-5.) According to the Plaintiff, Defendants Isaiah and Rodney Andrews “have failed to make required payments and comply with loan covenants. . .” (Motion, p. 4:6-8.) Plaintiff nominates Jackson Wyche of Receivership Specialists as the receiver. (Motion, p. 4:13-16.)

Plaintiff states that he believed that he would be the 100% vested owner of the property; in reality, the Grant Deed gave a 75% undivided interest to Defendant Isaiah Andrews and a 25% interest to Plaintiff. (Motion, p. 4:18-28.) On Sept. 19, 2023, Plaintiff signed a second Grant Deed transferring his 25% interest in the property to Defendant Isaiah Andrews. (Motion, p. 5:3-9.)

On January 24, 2024, Defendant Isaiah Andrews transferred the property to Defendant Dewey as a bona fide gift. (Motion, p. 5:11-13.) That same day, Defendant Dewey obtained a \$45,000 loan from Defendant Hasbun. (Motion, p. 5:16-17.) On April 28, 2025, Defendant Dewey transferred the property back to without executing a Deed of Reconveyance. The \$45,000 loan was never repaid by Defendant Dewey. (Motion, p. 5:22-25.)

Although the property was listed for sale several times, it was never sold. On May 1, 2024, Defendants Isaiah and Rodney Andrews began using the Property as a short-term Airbnb rental. Plaintiff has not received any accounting of the monies received. (Motion, p.6:2-5.)

By August 12, 2024, the loan on the Property was in default. (Motion, p. 7:8.)

Opposition by Defendants Isaiah and Rodney Andrews

The appointment of a receiver is a drastic remedy to be employed only when the property is “in danger of being lost, removed or materially injured.” (Opp., p. 6:10-12; CCP §564(b)(1).) Defendants argue that Plaintiff has not demonstrated that a less drastic remedy is unavailable “to preserve the status quo pending final judgment.” (Opp., p. 2:3-4.)

Defendants also argue that Plaintiff's delay in seeking relief shows that there is no true emergency. Defendants Andrews note that the real estate transaction occurred in 2022, the transfer issues occurred in 2024, and Plaintiff filed his lawsuit in December, 2025. However, he waited until June 2026 to request a receiver. (Opp., p. 11:8-18.)

Opposition by Defendant Hasbun

The Notice of Default has been rescinded and there is no foreclosure currently pending. (Opp., p. 2:6-9.)

Reply by Plaintiff

Defendants do not dispute that the loan has been in default for approximately two years, that the Property has been operated as a short-term rental since May 2024 and that Plaintiff “remains personally obligated on the Note while holding no record title.” (Reply, p. 2:3-10.) Further, although Defendant Hasbun claims that the Notice of Default has been rescinded, “no Rescission has been recorded.” (Reply, p. 2:11.)

COURT’S TENTATIVE DECISION:

Although the Motion asks for the Court to issue a TRO and OSC re Confirmation of Appointment of Receiver and Preliminary Injunction, the Motion contains no argument for either of these two requests. Therefore, the Court DENIES Plaintiff’s request for the issuance of a TRO and OSC re Confirmation of Appointment of Receiver and Preliminary Injunction.

The Court does not agree with Defendants Andrews that Plaintiff has unduly waited to seek a receiver for this Property. The case was filed on December 1, 2025. An *ex parte* request for appointment of a receiver was denied on June 18, 2026. The current Motion for Appointment of a Receiver was filed less than two weeks later, on June 29, 2026.

Nonetheless, the Court DENIES Plaintiff’s request to appoint a receiver. Plaintiff has not demonstrated that the Property is currently in danger of being sold, or that Plaintiff, should he win at trial, will not have an adequate remedy through damages.

However, the Court orders that none of the parties to this action sell or transfer the Property pending any further order of this Court.

The Court further orders Defendant Hasbun to supply the all parties within 15 days of the recorded Notice of Rescission. If any notice of Trustee’s Sale is recorded, Plaintiff may return to court – if necessary, on an *ex parte* basis – to request further Court intervention to prevent such a sale.